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U.S. Department of State Diplomacy in Action

Lebanon

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Lebanon is a parliamentary republic, with a constitution dating from 1926, in which, based on the unwritten "National Pact of 1943," the President is a Maronite Christian, the Prime Minister a Sunni Muslim, and the Speaker of the Chamber of Deputies a Shi'a Muslim. President Emile Lahoud took office in 1998 after an election by Parliament that was heavily influenced by Syria. The Parliament consists of 128 deputies, equally divided between Christian and Muslim representatives. In parliamentary elections in 2000, incumbent Prime Minister Salim al-Hoss lost his seat in a contested election, and former Prime Minister Rafiq Hariri was named Prime Minister by President Lahoud in October 2000. According to international observers, the elections were flawed; however, there reportedly were fewer voting irregularities than in the 1996 parliamentary elections. Although the judiciary was independent in principle, in practice, it was subject to political pressure.

Non-Lebanese military and paramilitary forces retained significant influence over much of the country. According to the 1989 Taif Accord, a peace settlement to end the civil war, the Syrian and Lebanese Governments were to determine the redeployment of Syrian troops to specified areas of the Biqa' Valley, with full withdrawal contingent upon subsequent agreement by both governments. The Syrian Government did not carry out this partial redeployment and has prevented implementation of other political reforms stipulated by the Taif Accord. Strong Syrian influence over local politics and decision makers made officials unwilling to press for further progress on fulfilling Taif agreements, including Syrian withdrawal. Since the Taif Accord was signed, no government has requested formally the withdrawal of Syrian forces. The Government's relationship with Syria did not reflect the will of most of the country's citizens.

In 1991 the Governments of Syria and Lebanon concluded a security agreement that provided a framework for security cooperation between their armed forces. Approximately 22,000 Syrian troops were stationed in locations throughout the country, excluding the south. An undetermined number of Syrian military intelligence personnel in the country continued to conduct their activities independently.

Until May 2000, Israel exerted control in or near its self-proclaimed "security zone" in the south through direct military action and support for its surrogate, the South Lebanon Army (SLA). In 2000, after 22 years of occupation, Israeli Defense Forces (IDF) troops withdrew from the south and the SLA disbanded. Following the withdrawal, the Government deployed more than 1,000 police and soldiers to the former security zone. The Government did not attempt to disarm Hizballah, a terrorist organization operating in the region.

Palestinian groups operated autonomously in refugee camps throughout the country. Several armed Palestinian factions were located in the refugee camps, although their freedom of movement was restricted significantly. The Government did not attempt to assert state control over the Palestinian camps; however, during the year it successfully took into custody fugitives who had sought refuge in the camps.

During the year, Hizballah, the influence of the Syrian Government, and Palestinian groups all undermined the authority of the Government and interfered with the application of law in those areas not completely under the Government's control.

The security forces consisted of the Lebanese Armed Forces (LAF), which may arrest and detain suspects on national security grounds; the Internal Security Forces (ISF), which enforced laws, conducted searches and arrests, and referred cases to the judiciary; and the State Security Apparatus and the Surete Generale, both of which collected information on groups deemed a possible threat to state security. The Surete Generale was responsible for the issuance of passports and residency permits, the screening and censoring of foreign periodicals, plays, documentaries, television programs, and movies, and the censoring of those parts that addressed national security issues and "morals." The security forces committed numerous, serious human rights abuses, sometimes acting independently, and other times on instruction of senior government officials.

The country of approximately 4 million had a market-based economy, in which the majority of the private sector was employed in the service sector and in a small industrial sector. During the year, there was slow implementation of economic reforms, unfavorable domestic political developments, and continuing regional instability that led to nearly stagnant economic activity. Unemployment was estimated to be approximately 25 percent.

The Government's overall human rights record remained poor; although there were some improvements in a few areas, serious problems remained. The right of citizens to change their government remained significantly restricted by the lack of complete government control over parts of the country, shortcomings in the electoral system, the flawed 2000 elections, and Syrian influence. Members of the security forces used excessive force and tortured and abused some detainees. Prison conditions remained poor. Government abuses also included the arbitrary arrest and detention of persons who were critical of government policies. Despite a new Code of Criminal Procedure, enacted in 2001, lengthy pretrial detention and long delays in trials remained problems. The courts were subject to political pressure. During the year, the Government infringed on citizens' privacy rights and continued surveillance of political activities. The Government limited press and media freedom.

The Government continued to restrict freedom of assembly and imposed some limits on freedom of association. There were some restrictions on freedom of religion. The Government imposed some limits on freedom of movement. Violence and discrimination against women, abuse of children, discrimination against Palestinians, forced labor, including by children, child labor, and the mistreatment of foreign domestic servants remained problems.

Palestinian groups in refugee camps maintained a separate, often arbitrary, system of justice for Palestinians living in the camps. Palestinians sometimes appealed to the country's authorities for legal recourse, often through both their Lebanese and Palestinian agents in the camps. Lebanon was invited by the Community of Democracies' (CD) Convening Group to attend the November 2002 second CD Ministerial Meeting in Seoul, Republic of Korea, as an observer.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports of the arbitrary or unlawful deprivation of life committed by the Government or its agents. On November 21, American citizen missionary Bonnie Witherall was killed at the Sidon health clinic where she worked. It is believed that Sunni extremists, possibly operating from the Ain Al-Hilwah Palestinian refugee camp, were responsible. However, no group has claimed responsibility for the killing and the case remained unsolved at year's end (see Section 2.c.).

On January 24, former Lebanese Forces Commander and former cabinet member Elie Hobeiqa and three of his bodyguards were killed when a car bomb exploded near Hobeiqa's residence. Five men were detained by the authorities for questioning but were later released. On May 21, Jihad Jibril, the son of the Secretary General of the Popular Front for the Liberation of Palestine-General Command, was killed when an explosive detonated inside his car. Two persons were in government custody in connection with the killings at year's end. Unknown groups claimed responsibility for the above killings. Also on May 21, the body of Ramzi Irani, the officer-in-charge of the banned Lebanese Forces at the Lebanese University was found 14 days after he was discovered missing. No one has claimed responsibility for his death.

In March State Prosecutor General Adnan Addoum acknowledged that four persons had died in custody during 2000; a Sudanese asylum seeker and three SLA detainees died of natural causes. There were no reported deaths in custody during the year.

The judicial system continued to suffer from a backlog of hearings into cases of deaths in custody, some as old as 6 years. Such cases sometimes involved individuals connected to political groups or accused of criminal activity.

Following IDF withdrawal in 2000, violence in and around the former Israeli controlled security zone decreased significantly. However, there were a number of violent cross-border incidents since the withdrawal, involving Hizballah, Palestinian, and other unidentified armed elements. No incidents resulted in civilian deaths during the year.

According to the LAF National Demining Office, there were approximately 400,000 landmines in the former security zone that had been occupied by Israel. The United Nations Interim Forces in Lebanon (UNIFIL) statistics on recorded landmines in the former security zone indicated that 50,644 antipersonnel mines were located in 108 minefields along the Lebanon-Israel border. Since the Israeli withdrawal, there have been 35 deaths and 192 injuries due to landmine accidents.

b. Disappearance

There were no reports of politically motivated disappearances.

Since 1999 the Government has worked to investigate cases of disappearance during the civil war, concluding in September 2000 that all persons who disappeared at least 4 years before the end of the civil war were dead. However, in December 2000, following the release by the Syrian authorities of an estimated 149 Lebanese detainees from Syrian jails, including some who had been declared dead, the Government formed a new committee to reexamine the cases and received about 800 applications from family members.

In 2001 the Israeli Government announced that the Israel soldiers kidnaped by Hizballah in 2000 were believed to be dead. During the year, Hizballah continued to maintain the position that it would release Israeli soldiers in return for the release of Arab prisoners held by Israel.

In October 2000, Hizballah kidnaped IDF reservist Elhann Tannenbaum. At year's end, he was still presumed to be detained.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Torture is not banned specifically by the Constitution, and there continued to be credible reports that security forces abused detainees and, in some instances, used torture. Human rights groups reported that torture was a common practice. Violent abuse usually occurred during preliminary investigations conducted at police stations or military installations, in which suspects were interrogated without an attorney. Such abuse occurred despite laws that prevented judges from accepting any confession extracted under duress.

Methods of torture reportedly included beatings and suspension by arms tied behind the back. Unlike in the past, there were no reported applications of electric shocks to the genitals.

In 2001, the Justice Minister publicly stated that "torture in Lebanese prisons is real, and mainly occurs during preliminary investigations." The Minister also added that the Government would adopt measures to eliminate the use of torture. By year's end, no measures had been taken.

The Government initially held incommunicado most of the 3,000 SLA personnel who surrendered to authorities following the IDF's May 2000 withdrawal; however, it subsequently allowed lawyers and family members to have access (see Section 1.d.). Some former SLA detainees reported that they were abused or tortured. Amnesty International (AI) and other human rights organizations reported that some detainees were beaten, handcuffed, blindfolded, and forced to lie face down on the ground.

In 2001 security forces arrested hundreds of supporters of exiled General Michel 'Awn, and detained Tawfiq Hindi, political advisor to former Lebanese Forces commander Samir Ja'ja. (see Section 1.d.). Some of those arrested claimed that officers had abused them. They also alleged that they were psychologically tortured when authorities threatened their families.

Abuses occurred in areas outside of the State's authority, including in Palestinian refugee camps. During the year, there were reports that members of the various groups who controlled the camps detained their Palestinian rivals (see Section 1.d.).

Prison conditions were poor and did not meet minimum international standards. The Government did not allocate funds for prison reform.

In 2001 members of the Parliamentary Commission for Human Rights visited all prisons in the country except those controlled by the Ministry of Defense. The Interior Ministry denied the press permission to accompany the delegation. The Chairman of the Commission subsequently stated that "the health conditions of the prisoners are deplorable and require continuous care. We hope the women's prisons will be emptied and the prisoners transferred." He also indicated that of the 7,230 persons being held in prison, only 2,500 were convicted.

In 2000 AI issued a report on prison conditions for women which highlighted numerous, serious human rights abuses, including torture, as well as the breach of legal rights of citizens. In response to public concern, the Prosecutor General appointed one of his senior aides to investigate allegations of torture and mistreatment of women in pretrial detention. In May, the Prosecutor's office issued a communique denying all allegations of torture against women. The Government has made a modest effort to rehabilitate some inmates.

The Surete Generale, which is in charge of border posts, operated a detention facility. All detainees, mostly Egyptians and Sri Lankans, were detained there pending deportation. In 2001, the Surete Generale opened a new detention facility, which reportedly provided somewhat better conditions than the old facility. Their detention was supposed to be 1 to 2 months, pending the regularization of their status. However, some, mainly asylum seekers, were detained for more than a year.

Former Lebanese Forces leader Samir Ja'Ja', who is serving four life sentences for the murder or attempted murder of various political figures during and after the civil war, was kept in solitary confinement in a prison in the basement of the Ministry of Defense. Government officials stated that his solitary confinement was necessary for his own protection.

During the year, local journalists and human rights organizations were given access to certain prisons except those controlled by the Ministry of Defense. Following the Israeli withdrawal, the Government did not grant independent monitors access to former SLA soldiers in custody. In September the Cabinet ordered that International Committee of the Red Cross (ICRC) representatives should be allowed to visit all prisons, including the one under the control of the Ministry of Defense. However, by year's end ICRC had not done so because the Ministry of Defense had not granted permission.

Prior to the Israeli withdrawal from the south, Hizballah detained and reportedly mistreated SLA members and suspected agents at unknown locations. The SLA operated its own detention facility, and there were frequent allegations of torture and mistreatment of detainees (see Section 1.d.).

Hizballah did not permit visits by human rights monitors to those persons in its custody. Men, women, and juveniles were held separately in government prisons.

d. Arbitrary Arrest, Detention, or Exile

The law requires security forces to obtain warrants before making arrests; however, the Government used arbitrary arrest and detention. Military intelligence personnel made arrests without warrants in cases involving military personnel and those involving espionage, treason, weapons possession, and draft evasion (see Section 1.e.). In 2001 the Parliamentary Commission for Human Rights stated that of the 7,230 persons being held in prison, only 2,500 were convicted.

In 2001 the Parliament enacted and put into effect a new Code of Criminal Procedure. The new law provides greater legal protection to suspects, including the right to a lawyer, to a medical examination, and to inform next of kin. Under the Code, arresting officers are required to refer a subject to a prosecutor within 48 hours of arrest, unless there were witnesses to the crime, in which case the suspect may not be held in custody more than 24 hours. The period may be extended to 48 hours with the agreement of the public prosecutor's office. If a suspect is held more than 48 hours without formal charges, the arrest is considered arbitrary and the detainee must be released. In such cases, officials responsible for the prolonged arrest may be prosecuted on charges of depriving personal freedom. A suspect caught in hot pursuit must be referred to an examining judge, who decides whether to issue an indictment or order the release of the suspect. Under the Code, bail is available in all cases regardless of the charges. Many provisions of the new Code were not observed in practice. Some police and members of the judiciary have claimed that they were not properly informed of the new provisions.

Defendants had the right to legal counsel, but there was no state-funded public defender's office. The Bar Association operated an office for those who could not afford a lawyer, and the court panel on many occasions asked the Bar Association to appoint lawyers for defendants.

Security forces continued the practice of arbitrary detention and arrest. On several occasions during the year, security forces detained and arrested hundreds of citizens on grounds of national security. Protestors were also arbitrarily detained and arrested (see Section 2.b.). The Government also detained, interrogated, and beat journalists (see Section 2.a.).

In 2001, security forces arrested, interrogated, and searched the homes of more than 100 citizens, predominately Christian supporters of exiled General Michel 'Awn, and jailed commander of the disbanded Lebanese Forces, Samir Ja'Ja'. Most of the arrests and searches took place without warrants, and those arrested claimed that they were not given access to lawyers. The authorities allegedly forced most of them to sign affidavits stating that they would abstain from politics and released them within 2 weeks after their arrests. Some were blindfolded and forced to sign the affidavits without reading them; some of those who refused were beaten until they signed. Retired General Nadim Lteif, Coordinator of the Awnist movement, and Tawfiq Hindi, former political advisor of Samir Ja'Ja', were among those arrested. At least 77 of those detained were referred to both military and civilian courts (see Section 1.e.). All but five of those arrested were released within weeks. Two persons were held until November 2001, when they were released on bail. In March the court dropped all charges against them.

In February, six men were arrested and accused of spying for Israel on Hizballah, as well as on Lebanese and Syrian military positions and Lebanese political figures and financial institutions. In September, military tribunals sentenced the men to terms ranging from 1 year in prison to death. Hassan Hashem, a former official of the country's Shi'a Amal militia, was sentenced to 3 years of hard labor. One defendant tried in absentia received a death sentence.

On July 11, the military court of appeals sentenced Lebanese Forces political advisor Tawfiq Hindi and journalist Habib Younis to 15 months imprisonment for having established contacts with Israeli forces. The tribunal also convicted journalist Antoine Bassil for providing assistance to Israeli forces and sentenced him to 30 months. On November 9 and 16, respectively, Hindi and Younis were released.

The Government initially held incommunicado most of the 3,000 SLA members who surrendered to the authorities following the IDF's withdrawal in 2000 (see Section 1.c.); however, lawyers and family members have since been provided access. The authorities often detained without charges for short periods of time political opponents and opponents of the Syrian Government. Legal action against them remained pending; however, they were free to travel abroad.

Palestinian refugees were subject to arrest, detention, and harassment by state security forces, Syrian forces, and rival Palestinians.

Unlike in 2000, there were no allegations during the year of the transfer of citizens by government authorities to Syria. By year's end, 9 of 54 persons turned over in 2000 to Syria remained in Syrian custody, including Abu Haytham Karara, an official of the Progressive Socialist Party. No formal charges were brought against them. Human rights activists believed that there were numerous Lebanese, Palestinians, and Jordanians in prolonged and often secret detention. According to AI, Syrian forces operating in Lebanon carried out searches, arrests, and detentions of Lebanese nationals outside any legal framework. The Government formed a committee in 2000 to investigate cases of those who disappeared during the civil strife (see Section 1.b.). Although it was due to report on its findings by July, the committee had not done so by year's end.

Abuses occurred in areas outside of the State's authority, including the Palestinian refugee camps. During the year, there were reports that members of the various groups who controlled the camps detained their Palestinian rivals.

During the year, there were no reports that Hizballah conducted arbitrary arrests in areas outside central government control.

Israel continued to hold 20 Lebanese citizens, including Sheikh Abed al-Karim Obaid and Mustafa Dirani, who had been held without charge since 1989 and 1994, respectively.

The law does not provide for forced exile, and it was not practiced regularly.

e. Denial of Fair Public Trial

The judiciary was independent in principle; however, it was subject to political pressure. The Constitution provides for a constitutional council to determine the constitutionality of newly adopted laws upon the request of 10 members of Parliament, and stipulates that judges shall be independent in the exercise of their duties; however, influential politicians as well as Syrian and Lebanese intelligence officers at times intervened and protected their supporters from prosecution.

The judicial system consisted of the regular civilian courts; the Military Court, which tries cases involving military personnel and civilians in security-related issues; the Judicial Council, which tries national security cases; and the tribunals of the various religious affiliations, which adjudicate matters of personal status, including marriage, divorce, inheritance, and child custody (see Section 5).

The Judicial Council is a permanent tribunal of five senior judges that adjudicates threats to national security. Upon the recommendation of the Minister of Justice, the Cabinet decides whether to try a case before this tribunal. Verdicts from this tribunal are irrevocable and may not be appealed.

The Ministry of Justice appointed all other judges based on the religious affiliation of the prospective judge. A shortage of judges has impeded efforts to adjudicate cases backlogged during years of internal conflict. Trial delays were aggravated by the Government's inability to conduct investigations in areas outside of its control.

In general trials were public, but judges had the discretion to make a court session secret. Defendants had the right to be present at trial and the right of timely consultation with an attorney. Defendants had the right to confront or question witnesses against them but must do so through the court panel, which decided whether or not to permit the defendant's question. Defendants and their attorneys had access to government-held evidence relevant to their cases and had the right of appeal. These rights generally were observed in practice.

Defendants on trial for security cases, which were heard before the Judicial Council, had the same procedural rights as other defendants; however, there was no right to appeal in such cases. The testimony of a woman was equal to that of a man (see Section 5).

The Military Court had jurisdiction over cases involving the military as well as those involving civilians in espionage, treason, weapons possession, and draft evasion cases. Civilians could be tried for security issues, and military personnel could be tried for civil issues. The military court had two tribunals-the permanent tribunal and the cassation tribunal-the latter of which heard appeals from the former. A civilian judge chaired the higher court. Defendants on trial under the military tribunal had the same procedural rights as defendants in ordinary courts.

In 2000, the Military Court began trying the cases of the approximately 3,000 SLA militiamen who surrendered to the Government following the Israeli withdrawal from the south. Some of the former SLA militiamen were charged under Article 273 of the Penal Code for taking up arms against the State, an offense punishable by death; others were charged under Article 285 of the Penal Code for trading with the enemy, an offense punishable by a minimum of 1 year in prison. Domestic human rights groups and international nongovernmental organizations (NGOs) reported that the trials were open to journalists and members of the public but were not fair. AI reported that such summary trials neither allowed the innocent to be acquitted nor ensured the discovery of those who may be guilty of war crimes. According to AI, the court tried between 23 and 43 persons each day. SLA lawyers who requested an adjournment to study the files of detainees were granted additional time. However, in most cases, defense lawyers received the files shortly before trial and consequently were unable to argue the cases individually. The standard defense presented by lawyers for the militiamen was that the Government had been unable to defend citizens living under Israeli occupation for the last 22 years. Therefore the residents had no choice but to work with the occupiers.

By year's end, more than 2,919 former SLA members had been tried and convicted. Approximately one-third of the former SLA members received 1-year prison sentences and approximately one-third received sentences of 3 to 4 weeks under Article 273. Two persons who were implicated in the abuse and torture of prisoners at al-Khiam prison were sentenced to life in prison. The military prosecutor recommended the death sentence for 37 former SLA militiamen for allegedly killing members of "the resistance" (i.e., Hizballah). 21 of these militiamen were tried while in government custody; 16 were tried in absentia. The Military Court denied every recommendation for the death sentence and handed down lighter sentences in each case. During the year, following attacks by angry crowds on two former SLA members in their villages, the court amended the sentences of some persons, barring them from returning to their villages for several years. According to the Government, these bans were issued to protect the former SLA members and were difficult to enforce. During the year, no similar sentences were issued. There were no new reports that the Government or Hizballah subjected former SLA members who returned to their villages to regular harassment. On July 19, Mahmoud Salim Mahbouba filed a claim that armed individuals broke into his house and kidnaped his son, Mohammed, a former SLA member who was released from Roumeih prison after serving a 2-year sentence. By year's end, the Government had released all of the 220 SLA militiamen who were tried following the June 1999 SLA withdrawal from Jezzine.

In 2001 the State Prosecutor's Office requested that the Bar Association lift the immunity of lawyer Muhammad Mugarby to permit Mugarby's prosecution for criticizing the country's judicial system at a press conference. The Bar Association complied with the request; at year's end, Mugarby's challenge of the decision remained pending (see Section 2.a.).

In August 2001, the Government arrested without warrant Antoine Bassil, a correspondent for a Saudi Arabian television station, for his alleged association with Israeli officials. In July Bassil was sentenced to 30 months in prison by a military tribunal(see Section 2.a.).

In 2001, the Government arrested without warrant Habib Younis, the managing editor in al-Hayat's Beirut office, for his alleged association with Israel. Authorities referred his case to a military court, which indicted him for conspiring with Israel. Younis was sentenced to 15 months of imprisonment and was released on November 16 (see Section 1.d.).

In 2001 authorities referred at least 77 'Awn and Ja'Ja supporters to both military and civilian courts. Charges brought by the Military Prosecutor's Office included opposing the policy of the Government; disseminating the principles of an unauthorized political party; jeopardizing the country's relations with a friendly state; using oral and written statements not authorized by the Government; defaming the Syrian army's reputation; organizing meetings and activities of a unauthorized political party; and transmitting false and exaggerated information. Tawfiq Hindi, Ja'Ja's former political advisor was charged with collaborating with the Israeli enemy, forming an association to harm the State's authority, and damaging the country's relation with a sisterly nation(see Section 1.d.). In 2001 the Court of Cassation ruled that the military court did not have jurisdiction in 63 of the cases, which were transferred to a criminal court. At year's end, these cases were still pending in court. The cases of Nadim Lteif and Hikmat Deeb, who were charged with defaming the Lebanese and Syrian armies, were referred to both military and civilian courts (see Section 1.d.). At year's end, both cases remained pending.

Palestinian groups in refugee camps operated an autonomous and arbitrary system of justice.

f. Arbitrary Interference With Privacy, Family, Home, or Correspondence

The Constitution provides for the inviolability of the domicile; however, authorities frequently interfered with the privacy of persons regarded as enemies of the Government. Laws require that prosecutors obtain warrants before entering homes, except when the security forces are in close pursuit of armed attackers; however, in practice the law was not respected.

The Government and Syrian intelligence services used informer networks and monitored telephones to gather information on their perceived adversaries. The Army Intelligence Service monitored the movements and activities of members of opposition groups (see Section 2.b.). The Government conceded that telephone calls were monitored by security services but claimed that monitoring occurred only with prior authorization from competent judicial authorities.

Politicians and human rights advocates reported increasing and more overt government intelligence services' surveillance of political meetings and political activities across the religious and political spectrum. In 1999 the Parliament passed a law that authorized surveillance in national security and law enforcement cases but banned its use against government ministers and parliamentary deputies; however, the Government had not adopted the necessary implementing decrees by year's end.

Militias and non-Lebanese forces operating outside the area of central government authority frequently have violated citizens' privacy rights. Various factions also used informer networks and the monitoring of telephones to obtain information regarding their perceived adversaries.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for freedom of speech and of the press; however, the Government limited this right in practice, particularly by intimidating journalists and broadcasters into practicing self-censorship. The Government censored television broadcasts on a case-by-case basis.

Although there were repeated attempts to restrict freedom of opinion and speech during the year, daily criticism of government policies and leaders continued. Dozens of newspapers and hundreds of periodicals were published throughout the country and were financed by various local and foreign groups. The press was privately owned and press content often reflected the opinions of financial backers.

The Government had several legal mechanisms at its disposal to control freedom of expression. The Surete Generale was authorized to censor all foreign magazines and nonperiodical works, including plays, books, and films, before they were distributed in the market. The law prohibits attacks on the dignity of the Head of State or foreign leaders. The Government may prosecute offending journalists and publications in the Publications Court, a special tribunal empowered to try such

matters. Moreover, the 1991 security agreement between Lebanon and Syria contained a provision that effectively prohibits the publication of any information deemed harmful to the security of either state. In view of the risk of prosecution, journalists censored themselves on matters related to Syria.

In 1999 President Lahoud announced that under his tenure no charges would be brought against any journalist because of his writings or opinions; however, during the year the Government continued to harass, abuse, and detain journalists.

In January Surete Generale officers and plainclothes agents confiscated 650 DVDs at the Virgin Megastore. The titles confiscated included Rabbi Jacob, The Ten Commandments, Superman, and Jesus of Nazareth. The Surete General claimed that the confiscated merchandise was smuggled illegally through customs and contained material that slandered religion and public decency and contravened the boycott against Israel.

In January the Surete Generale imposed "prior censorship" on the Saudi-owned daily Asharq al-Awsat. In December 2001, the newspaper reported that President Lahoud escaped an assassination attempt while on vacation in Monte Carlo. The Beirut Public Prosecutor filed a lawsuit against the newspaper. The Minister of Information criticized the decision taken by the Surete and stated that "no prior censorship should be practiced on local newspapers." The case was still pending at year's end.

On March 25, the ISF beat several photographers who were taking pictures of a collapsed building in Beirut. The Minister of the Interior ordered an investigation to reprimand those responsible for the misconduct. No information was available about any punitive action at year's end.

On April 12, the Beirut Public Prosecutor pressed charges against the publisher of the International Herald Tribune (ITH) in Beirut, after the newspaper ran a pro-Israeli advertisement of the Anti-Defamation League. The charges were leveled at the publisher and editor-in-chief of the local English newspaper the Daily Star who is the IHT legal representative. At year's end, the case remained pending in court.

In August, the Beirut Public Prosecutor filed a lawsuit against the chairman and news editor of Lebanese Broadcasting Corporation International (LBCI) for having "instigated sectarian discord and threatened civil peace" during its coverage of a shooting incident in which eight employees of the Ministry of Education were killed. The station's news coverage of the event focused on the fact that the shooter was a Shi'a Muslim, whereas seven of the eight who were killed were Christians. In August the Beirut Public Prosecutor charged the Murr Television Station (MTV), its political news director, and the host of "Referendum" political talk show with "broadcasting material whose nature is to damage ties to a sisterly nation" (Syria) and "assailing the dignity of the President, slandering the security services and undermining social order." At year's end, the case remained pending in court.

On September 4, the Publications Court ordered the closure of MTV and RML radio, citing Article 68 of the Parliamentary Election Law, which stipulates "complete closure" for broadcasting election propaganda during the campaign period. ISF and army troops closed the station's headquarters shortly after the decision. The court ruled against an appeal to reopen the stations on October 21. On December 27, the court denied a second appeal.

In September State Prosecutor Addoum announced that he would examine declarations made by opposition members in Lebanon and abroad after the Christian Maronite World Congress held in Los Angeles in June, including TV interviews and press statements, in search of elements which could incriminate them. This included statements about Syria and the Syria Accountability Act. Addoum ordered security agencies to gather information about opposition activities outside Lebanon.

In August 2001, the Government brought charges against Joseph Nasr, the editor in chief of the daily newspaper An-Nahar, and Rafi Madayan, the author of an article published in that newspaper that the Government deemed insulting to the military. The Government also brought charges against the weekly newspaper Al-Watan Al-Arabi for having published news that it deemed insulting to the Lebanese and Syrian armies. The cases had not been tried by year's end.

In August 2001, the army's intelligence services arrested without a warrant Antoine Bassil, a correspondent for the Saudi Arabian television station Middle East Broadcasting Corporation (MBC). In December 2001, a court indicted Bassil on charges of contact with the enemy, entering Israel, forming an association to harm the State's authority, and damaging relations with a sisterly country. In July the military court found him guilty and sentenced him to 30 months imprisonment (see Section 1.e.).

In August 2001, the Government arrested without a warrant Habib Younis, an editor with al-Hayat's Beirut office on charges of "contact with the Israeli enemy." The Government interrogated Younis without the presence of a lawyer (see Section 1.e.) and the military court indicted him on charges of conspiring with Israel. In July the military court found him guilty and sentenced him to 15 months imprisonment (see section 1.d.).

The Government continued to restrict radio and television broadcasts in a discriminatory manner. There were 7 television stations and 37 radio stations. The Government owned one television and one radio station; the remaining stations were owned privately. Satellite television was available widely and was inexpensive.

Although the Government did not censor broadcasts directly, government officials exerted pressure on journalists to practice self-censorship. For example, in November the Government pressured LBCI not to air a talk show that was to include an outspoken opposition figure. The Government also pressured the media not to report on the arrest in Syria of an al-Hayat correspondent.

In general the Government did not restrict Internet access, and it was used widely.

The Government generally respected academic freedom, and the country had a strong private educational system.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for freedom of assembly; however, the Government restricted this right in practice. Any group that wished to organize a rally had to obtain the prior approval of the Ministry of Interior, which did not render decisions consistently. Groups opposing government positions sometimes did not receive permits.

On several occasions during the year, military personnel used excessive force to disperse protesters of government political and economic policies and the Syrian presence in Lebanon, sometimes detaining or arresting them (see Sections 1.c. and 1.d.).

In August 2001, approximately 200 persons, mostly university students, gathered near the Justice Ministry to protest the arrests of more than 100 'Awnists and Lebanese Forces supporters. Plainclothes intelligence agents arrested at least 10 persons, reportedly including 1 journalist (see Section 2.a.), and used heavy force to suppress the demonstration. Demonstrators were beaten with rifle butts, kicked, and trampled by security forces. At least two journalists reportedly also were beaten (see Section 2.a.). All of those arrested were released within 2 days. A few days after the protest, the Minister of Interior stated that those responsible for using excessive force would be punished. Subsequently the Justice Minister instructed the Prosecutor General's Office to investigate the incident; however, there were no reports that any measures were taken by year's end.

On March 14, approximately 2,000 demonstrators, mostly student supporters of the now-exiled former Army Commander Michel 'Awn, participated in an anti-Syrian march. Security forces and LAF troops dealt responsibly with the protestors and the demonstration was peaceful.

During March and April, at least 20 nonviolent demonstrations and sit-ins took place in support of the Palestinian Intifada. The Government took an aggressive stance by providing protection and security for foreign interests during that period. However, on April 3, a demonstration of 3,500-4,000 took place at a diplomatic mission. When the crowd attacked security

forces with stones, the security forces deployed tear gas and water cannons to disperse it. At least seven police members and some demonstrators were slightly injured.

The Constitution provides for freedom of association, and the Government generally respected this right and did not interfere with most organizations; however, it imposed limits on this right. The law requires every new organization to submit a notification of formation to the Ministry of Interior, which issues a receipt. In addition to what is provided by law, the Ministry of Interior imposed on organizations further restrictions and requirements that were not enforced consistently. The Ministry at times withheld the receipt, essentially transforming a notification procedure into an approval process. The Ministry in some cases sent notification of formation papers to the security forces, which then conducted inquiries regarding an organization's founding members. The results of such inquiries may be used by the Ministry in deciding whether or not to approve the formation of the group.

Organizations must invite Ministry representatives to a general assembly in which votes are held for by-law amendments or in which elections are held for positions on the board of directors. The Ministry also required every association to obtain the Ministry's approval of any change in by-laws; failure to do so could result in the dissolution of the association.

Although the law did not distinguish between political parties and other associations, the Cabinet had to license political parties.

The Government scrutinized requests to establish political movements or parties and to some extent monitored their activities. The Army Intelligence Service monitored the movements and activities of members of opposition groups (see Section 1.f.).

The Government closely monitored groups critical of Syrian policies, and their members were subject to harassment and arrest by the Government.

c. Freedom of Religion

The Constitution provides for freedom of religion, and the Government generally respected this right in practice; however, there were some restrictions. Discrimination based on religion is built into the system of government. The Government subsidized all religions and all Muslim clerics received monthly salaries from the Government.

The State is required to ensure the free exercise of all religious rites, provided that public order is not disturbed. The Constitution also provides that the personal status and religious interests of the population be respected. The Government permitted recognized religions to exercise authority over matters pertaining to personal status, such as marriage, divorce, and inheritance. There is no state religion; however, politics are based on the principle of religious representation, which was applied to every aspect of public life.

A group that seeks official recognition must submit its dogma and moral principles for government review to ensure that such principles did not contradict popular values and the Constitution. The group must ensure that the number of its adherents is sufficient to maintain its continuity. Alternatively, religious groups may apply to obtain recognition through existing religious groups. Official recognition conveys certain benefits, such as tax-exempt status and the right to apply the recognized religion's codes to personal status matters. Each recognized religious group has its own courts for family law matters, such as marriage, divorce, child custody, and inheritance. State recognition was not a legal requirement for religious worship or practice. For example, although Baha'is, Buddhists, and Hindus were not recognized officially, they were allowed to practice their faith without government interference; however, their marriages, divorces, and inheritances in the country were not recognized under the law.

The unwritten "National Pact" of 1943 stipulates that the President, the Prime Minister, and the Speaker of Parliament be a Maronite Christian, a Sunni Muslim, and a Shi'a Muslim, respectively. The 1989 Taif Accord, which ended the country's 15-year civil war, reaffirmed this arrangement but resulted in increased Muslim representation in Parliament and reduced the

power of the Maronite President. The Accord called for the ultimate abolition of political sectarianism in favor of "expertise and competence;" however, little substantive progress was made in this regard. A "Committee for Abolishing Confessionalism," which was called for in the Taif Accord, had not yet been formed by year's end. One notable exception was the LAF which, through universal conscription and an emphasis on professionalism, has significantly reduced the role of confessionalism (or religious sectarianism) in the armed forces. Christians and Muslims were represented equally in the Parliament. Seats in the Parliament and Cabinet, and posts in the civil service, were distributed proportionally among the 18 recognized groups (see Section 3).

The Government required that religious affiliation be encoded on national identity cards, but not on passports.

Religious groups administered their own family and personal status laws. There were 18 recognized religious groups, each of which differed in its treatment of marriage, family, property rights, and inheritance. Many of these laws discriminated against women. For example, Sunni inheritance law provided a son twice the inheritance of a daughter. Although Muslim men may divorce easily, Muslim women may do so only with the concurrence of their husbands. There is no law that permits civil marriages, although such ceremonies performed outside the country were recognized by the State. Only religious authorities may perform marriages.

There were no legal barriers to proselytizing; however, traditional attitudes and edicts of the clerical establishment strongly discouraged such activity. During the year, there were reports that members of the Christian community in Kesirwan, with the knowledge of local clergy, occasionally verbally harassed church leaders and persons who attended an unrecognized Protestant evangelical church.

In October a Greek Orthodox church in Tripoli and the Saint Elias Maronite Church in Sidon were bombed. Later that month, arsonists set fire to a northern mosque. President Lahoud blamed "Israeli sympathizers" for the second incident. No one had been arrested in connection with either crime by year's end.

On November 21, an American citizen missionary affiliated with the Christian and Missionary Evangelical Alliance was killed in Sidon. No group has claimed responsibility for the killing (see Section 1.a.).

For a detailed discussion see the [2002 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2002/\)](https://2009-2017.state.gov/j/drl/rls/irf/2002/).

d. Freedom of Movement Within the Country, Foreign Travel, Emigration and Repatriation

The Constitution provides for these rights, and the Government generally respected them in practice; however, there were some limitations. The law prohibits travel to Israel. The LAF and Syrian troops maintained checkpoints throughout much of the country. All men between 18 and 21 years of age were subject to compulsory military service and were required to register at a recruitment office and obtain a travel authorization document before leaving the country. Married women must obtain their husband's signatures to apply for a passport. Although a man may obtain passports for his children without his wife's approval, a women may not obtain passports for her children without the approval of her husband (see Section 5).

There were no legal restrictions on the right of citizens to return to the country. However, many emigres were reluctant to return for a variety of political, economic, and social reasons. The Government encouraged the return to their homes of over 600,000 persons displaced internally during the civil war. Although some persons have begun to reclaim homes abandoned or damaged during the war, the vast majority of displaced persons have not attempted to reclaim and rebuild their property. The resettlement process was slowed by tight budgetary constraints, destroyed infrastructure, political feuds, a lack of schools and economic opportunities, and the fear that physical security still was inadequate in some parts of the country.

In 2000, approximately 6,000 SLA militiamen and their families fled to Israel. At year's end, approximately 2,200 had returned to the country. Several hundred relocated elsewhere outside of Israel, and between 3,000 and 4,000 remained in Israel at year's end. Of the former SLA personnel who returned to the country, most received prison sentences of varying lengths (see

Section 1.e.). The Government publicly stated that the former SLA militiamen were welcome to return to the country, but that they would face trial upon their return. There were few incidents of harassment of returned SLA deportees.

Most non-Lebanese refugees were Palestinians. In 2001 the U.N. Relief and Works Agency (UNRWA) reported that the number of Palestinian refugees in the country registered with the UNRWA was approximately 383,000. This figure, which included only the families of refugees who arrived in 1948, was presumed to include many thousands who reside outside of the country. Most experts estimated the actual number in the country to be between 150,000 and 200,000. Most Palestinian refugees were unable to obtain citizenship and were subject to governmental and societal discrimination; however, Palestinian women who married Lebanese men could obtain citizenship (see Section 5).

The Government issued travel documents to Palestinian refugees to enable them to travel and work abroad. The Government did not issue visitors' visas to Jordanian nationals who were born in the country and were of Palestinian origin.

On several occasions, Hizballah operatives interfered with the freedom of movement of UNIFIL personnel. For example on April 4, about 15 Hizballah operatives forced an observer group to stop at checkpoints and assaulted them, injuring 3. According to the U.N. Secretary General's report, no action was taken despite government assurances that the perpetrators would be arrested and brought to trial.

There were no legal provisions for granting asylum or refugee status in accordance with the 1951 U.N. Convention Relating to the Status of Refugees and its 1967 Protocol. The Government granted admission and temporary (6 months) refuge to asylum seekers, but not permanent asylum. The Government generally cooperated with the offices of the U.N. High Commissioner for Refugees (UNHCR) and UNRWA.

According to the UNHCR, there were nearly 3,000 non-Palestinian refugees, primarily Iraqis and Sudanese, detained for illegal entry into the country. During the year, the Surete General granted UNHCR officials access to the detainees. There were credible reports that the Surete Generale deported Iraqi Kurds seeking asylum back to Iraq through Syria.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The Constitution states that citizens have the right to change their government in periodic free and fair elections; however, lack of control over parts of the country, defects in the electoral process, and strong Syrian influence over politics and decision makers significantly restrict this right.

According to the Constitution, elections for the Parliament must be held every 4 years. In turn, the Parliament elects the President every 6 years. The President and Parliament nominate the Prime Minister, who, with the President, chooses the Cabinet. According to the unwritten "National Pact of 1943," the President must be a Maronite Christian, the Prime Minister a Sunni Muslim, and the Speaker a Shi'a Muslim (see Section 2.c.). Since the National Reconciliation Agreement reached in Taif, Saudi Arabia in 1989, which revised the 6 to 5 ratio of Christian to Muslim seats in Parliament, there has been a 50-50 balance between Christian and Muslim Members of Parliament. The Taif Accord also increased the number of seats in Parliament and transferred some powers from the Maronite President to the Sunni Prime Minister and the religiously mixed Cabinet.

The parliamentary elections in 2000 showed fewer incidents of voter fraud and tampering with ballots than previous elections; however, the process was flawed with serious shortcomings, including Syrian Government influence on the electoral law and candidate selection, progovernmental media manipulation, and improper activities of security services.

On June 2, a by-election held in the Metn district for the Greek-Orthodox seat was reportedly marred by numerous irregularities, in addition to the Minister of Interior's claim that the secret ballot is "optional." In November the Constitutional Council names the third placed candidate as the winner.

In September 2001, municipal elections were held for the first time since 1963 in 64 villages and towns in areas formerly occupied by Israel. Local observers reported that the elections were generally free and fair; however, there were some irregularities, including attempts by government agencies to pressure candidates and voters, the presence of unauthorized persons inside polling stations, and the absence of registration committees on voting day to correct errors in voters lists.

Women had the right to vote, and there were no legal barriers to their participation in politics; however, there were significant cultural barriers. No woman has ever held a cabinet position. In 2000, three women were elected to the 128-seat Parliament.

Palestinian refugees had no political rights (see Section 5). An estimated 17 Palestinian factions operated in the country and were generally organized around prominent individuals. Most Palestinians lived in refugee camps controlled by one or more factions. Refugee leaders were not elected, but there were "popular committees" that met regularly with UNRWA and visitors.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Several local human rights groups operated freely without overt government restriction, including the Lebanese Association for Human Rights, the Foundation for Human and Humanitarian Rights-Lebanon, and the National Association for the Rights of the Disabled. Some of these groups have sought to publicize the detention in Syria of hundreds of Lebanese citizens and took credit in part for the release of a number of Lebanese from Syrian jails during 1999 (see Section 1.d.). The Bar Association and other private organizations regularly held public events that included discussions of human rights issues. Some human rights groups reported harassment and intimidation by government, Syrian, or Hizballah forces.

The Government generally cooperated with international NGOs and met with them during the year. In March the United Nations High Commissioner for Human Rights met with senior government officials. The ICRC and AI maintained offices in the country. During the year, government officials discussed human rights problems with representatives of foreign governments and NGOs. For example, the Lebanese Foundation for Human and Humanitarian Rights discussed issues related to Iraqi asylum seekers with the Government and secured the non-deportation of Iraqi Kurds back to Iraq.

The Parliamentary Commission for Human Rights did not take action in response to the arrests in 2001 by security forces of antigovernment and anti-Syrian protestors. However, the Commission played an important role in ratifying the U.N. Convention against Torture in 2001 and passing the new Code of Criminal Procedure. Following visits to the prisons, the Commission's chairman stated that the Commission would work on improving prison conditions by passing the Code of Criminal Procedure and by increasing funding to build new correctional facilities; however, by year's end, no funds had been allocated.

Section 5 Discrimination Based on Race, Sex, Disability, Language, or Social Status

The Constitution calls for "social justice and equality of duties and rights among all citizens without prejudice or favoritism;" however, in practice aspects of the law and traditional beliefs discriminated against women. Although the law reserves a percentage of private sector and government jobs to persons with disabilities, there were few accommodations made for them. Discrimination based on race, language, or social status is illegal and was not widespread among citizens; however, foreign domestic servants often were mistreated.

Women

The law does not specifically prohibit domestic violence; however, violence against women was a common problem. Cases reported were believed to be only a fraction of the actual number. There were no authoritative statistics on the extent of spousal abuse. Most experts agreed that the problem affected a significant portion of the female population. Despite a law prohibiting battery with a maximum sentence of 3 years in prison for those convicted, some religious courts legally may

require a battered wife to return to the house in spite of physical abuse. Many women were compelled to remain in abusive marriages because of social and family pressures. Possible loss of custody of children and the absence of an independent source of income also prevented women from leaving their husbands.

The Government had no separate program to provide medical assistance to battered women; however, it provided legal assistance to victims who could not afford it regardless of the gender of the victim. In most of the cases, the police ignored complaints submitted by battered or abused women. The NGO The Lebanese Council to Resist Violence Against Women has worked actively to reduce violence against women by offering counseling and legal aid and raising awareness about domestic violence.

Foreign domestic servants often were mistreated, abused, and in some cases, raped. Asian and African female workers had no practical legal recourse available to them because of their low status, isolation from society, and because the labor laws did not protect them (see Section 6.e.). Because of such abuse, the Government prohibited foreign women from working if they were from countries that did not have diplomatic representation in the country.

The law prohibits rape, and the minimum sentence for a person convicted of rape is 5 years in prison. The minimum sentence for a person convicted of raping a minor is 7 years.

The legal system was discriminatory in its handling of so-called "honor crimes." According to the Penal Code, a man who kills his wife or other female relative may receive a reduced sentence if he demonstrates that he committed the crime in response to a socially unacceptable sexual relationship conducted by the victim. However, in 1999 the law was amended to increase the severity of the sentence for perpetrators of "honor crimes." Several instances of honor crimes are reported in the media every year, and reportedly there were an average of two to three cases of honor crimes each month during the year. No person has been convicted in a case legally considered as an honor crime.

Prostitution is legal but regulated; in practice most prostitution is unlicensed and thus illegal. Thousands of foreign women, primarily from Russia and Eastern Europe, engaged in prostitution. The country was a destination for trafficked persons, primarily women (see Section 6.f.).

Women had varying employment opportunities in government, medicine, law, academia, the arts, and to a lesser degree, business. However, social pressure against women pursuing careers was strong in some parts of society. Men sometimes exercised considerable control over female relatives, restricting their activities outside of the home or their contact with friends and relatives. The law prohibits sexual harassment; however, it was a widespread problem.

Women may own property but often ceded control of it to male relatives for cultural reasons and because of family pressure. Husbands may block foreign travel by their wives (see Section 2.d.). The testimony of a woman is equal to that of a man in court (see Section 1.e.).

In 2001, Parliament adopted a law providing equal pay for equal work for men and women. During the year, the Parliament passed legislation giving women serving in government the same rights as men in terms of medical coverage and hospitalization.

Only men may confer citizenship on their spouses and children. Accordingly, children born to citizen mothers and foreign fathers are not eligible for citizenship. Citizen widows may confer citizenship on their minor children.

Children

Education was free in public schools and compulsory until the age of 13. However, public schools generally were inadequate, and the cost of private education was a significant problem for the middle and lower classes. Many children, particularly in rural areas, took jobs at a young age to help support their families. UNICEF reported that in the 2000 school year,

approximately 85 percent of children between the ages of 3 and 5, and approximately 98 percent of children between the ages of 7 to 11 were enrolled in school. In some families with limited incomes, boys received more education than girls. Illiteracy rates were approximately 38 percent. The minimum for child employment is 14 years of age (See Section 6.d.).

An undetermined number of children were neglected, abused, and exploited. The normal procedure for adoption was through religious homes or institutions authorized to arrange adoption; however, the demand to provide infants for adoption abroad resulted in illegal international adoptions. There were no statistics available concerning the prevalence of the illegal adoption of infants. Poor children often were compelled by their parents to seek employment and often took jobs that jeopardized their safety (see Section 6.d.). Because of their ages, wages earned by such children were not in conformity with labor regulations. The Government did not have specific child protection laws to remove children from abusive situations and did not grant NGOs adequate legal standing to litigate on behalf of abused minor children.

During the year, the police discovered and broke up several child prostitution rings.

Persons with Disabilities

More than 100,000 persons became disabled during the civil war. Families generally performed care of persons with disabilities. Most efforts to assist persons with disabilities were made by approximately 100 private organizations. These organizations were relatively active, although poorly funded.

There were few accommodations for persons with disabilities in the cities.

The law on persons with disabilities stipulates that at least three percent of all government and private sector positions should be filled by persons with disabilities, provided that such persons fulfill the qualifications of the position.

During the year, joint committees composed of the National Committee for the Disabled and the Ministries of Health, Labor, and Education were formed to implement the disabled law. During the year, the Ministry of Finance informed all firms and companies that it would not settle obligations with them unless they proved that three percent of their work force was composed of disabled personnel.

National/Racial/Ethnic Minorities

According to the UNHCR, an estimated 380,000 Palestinian refugees were registered in the country (see Section 2.d.); however, it was believed that perhaps between 150,000 to 200,000 Palestinians actually resided in the country. Most Palestinian refugees lived in overpopulated camps that suffered repeated heavy damage as a result of fighting. The Government generally prohibited the construction of permanent structures in the camps on the grounds that such construction encouraged the notion of permanent refugee settlement in the country. Refugees feared that the Government may reduce the size of the camps or eliminate them completely. Very few Palestinians received work permits, and those who found work usually were directed into unskilled occupations. In recent years, Palestinian incomes have continued to decline. The law prohibited Palestinian refugees from working in 72 professions.

In 2001 the Parliament passed legislation depriving Palestinian refugees of the right to own property in the country. Under the new law, Palestinians no longer may purchase property and those who own property will be prohibited from passing it on to their children. The Parliament justified the law on the grounds that it was protecting the right of Palestinian refugees to return to the homes they fled after the creation of the state of Israel in 1948. Other foreigners may own a limited size plot of land but only after obtaining the approval of five different district offices. The law applies to all foreigners, but it is applied in a manner disadvantageous to the 25,000 Kurds in the country. The Government did not provide health services to Palestinian refugees, who relied on UNRWA and UNRWA-contracted hospitals.

In recent years, Palestinian incomes have declined. Palestinian children reportedly have been forced to leave school at an early age because U.N. relief workers do not have sufficient funds for education programs. The U.N. estimates that 18 percent of street children in the country are Palestinian. Drug addiction, prostitution, and crime reportedly were increasing in the camps, although reliable statistics were not available. In 1999, the Fatah faction of the PLO expanded its operations in the Ain al-Hilwah refugee camp by opening security offices and hiring personnel to maintain order in the camps.

Section 6 Worker Rights

a. The Right of Association

The law provides that all workers except government employees may establish and join unions. Worker representatives must be chosen from those employed within the bargaining unit. About 900,000 persons formed the active labor force, 14 percent of who were members of 210 labor unions and associations. Most of these unions gathered to form Federations. To date, 37 federations, with about 200,000 workers, were represented in the General Confederation of Labor (GCL).

Palestinian refugees may organize their own unions; however, because of restrictions on their right to work, few Palestinians participated actively in trade unions.

Unions were free to affiliate with international federations and confederations, and they maintained a variety of such affiliations.

b. The Right to Organize and Bargain Collectively

The right of workers to organize and to bargain collectively exists in law and practice. Most worker groups engaged in some form of collective bargaining with their employers. Stronger federations obtained significant gains for their members and on occasion have assisted nonunionized workers. There were no government mechanisms to promote voluntary labor-management negotiations, and workers had no protection against antiunion discrimination. Union leaders alleged credibly that, in the past, the Government has tried to interfere in elections for union officials.

The law provides for the right to strike. In December the teachers' union went on a strike and then staged a demonstration to protest budget proposals including taxes on pensions and working hour increases.

In June and July, taxi and bus drivers held separate strikes to protest a new government anti-pollution measure calling for a switch from diesel to gasoline for all passenger vehicles carrying less than 15 passengers.

There were no export processing zones.

c. Prohibition of Forced or Bonded Labor

Forced labor is not prohibited by law. Children, foreign domestic servants, and other foreign workers sometimes were forced to remain in situations amounting to coerced or bonded labor (see Sections 5 and 6.e.).

d. Status of Child Labor Practices and Minimum Age for Employment

The Labor Code prohibits employment of workers under the age of 18 for more than 6 hours per day, and requires 1 hour of rest if work is more than 4 hours. The law defines workers under the age of 14 as child laborers. The amendments also entitle children to 21 days of paid annual leave. Children are prohibited from working between the hours of 7 p.m. and 7 a.m. The Code also prohibits certain types of mechanical work for children between the ages of 8 and 13 and other types for those between the ages of 13 and 16. The law prohibits children under the age of 18 from working in jobs that jeopardize their health, safety, or morals. The Ministry of Labor was responsible for enforcing these requirements; however, it did not apply the law rigorously. During the year, a law was passed regarding the protection of juveniles exposed to danger.

In June Parliament ratified ILO Convention No. 138, concerning minimum age for admission to employment. According to the Central Statistics Administration, 7.6 percent of working children were between the ages of 6 and 14. The report also indicated that of this 7.6 percent, 45.3 percent were performing all kinds of jobs, such as working in the fields concurrently helping their parents in the home. Most of these child laborers were citizens, but some were Syrian; they worked predominantly in the industrial, craft, and metallurgical sectors.

Approximately 40 percent of working children worked 10 to 14 hours per day, and few received social welfare benefits. In addition, the active labor force included approximately 52,000 workers between the ages of 15 and 19, who were not eligible for the minimum wage until they reached the age of 21.

e. Acceptable Conditions of Work

The Government set a legal minimum wage, currently approximately \$200 (300,000 Lebanese pounds) per month. The law was not enforced effectively in the private sector. In theory the courts were called upon to enforce it, but in practice they did not. The minimum wage was insufficient to provide a decent standard of living for a worker and family. Trade unions attempted to ensure the payment of minimum wages in both the public sector and the large-scale private sector.

The Labor Law prescribes a standard 6-day workweek of 48 hours, with a 24-hour rest period per week. In practice workers in the industrial sector worked an average of 35 hours per week, and workers in other sectors worked an average of 30 hours per week. The law includes specific occupational health and safety regulations. Labor regulations require employers to take adequate precautions for employee safety. The Ministry of Labor was responsible for enforcing these regulations, and it did so unevenly. Labor organizers reported that workers did not have the right to remove themselves from hazardous conditions without jeopardizing their continued employment. Foreign domestic servants, mostly of Asian and African origin, often were mistreated, abused, and raped (see Section 5). A recruitment agency and the employer signed the employment contract for a foreign worker; workers rarely were a party to the contract or, if they were a party, might not know what the contract stipulates because it is written in Arabic. The recruitment agency or employers confiscated the passports of foreign domestic workers when the workers arrived at the airport. Labor laws do not protect foreign domestic servants. Domestic servants often worked 18 hours per day, and in most cases did not receive vacations or holidays. There was no minimum wage for domestic servants; their average wage was approximately \$100 (150,000 Lebanese pounds) per month. They had no entitlement to government financial assistance.

f. Trafficking in Persons

The law does not specifically prohibit trafficking in persons; however, the Penal Code stipulates that "any person who deprives another of freedom either by abduction or any other means shall be sentenced to temporary hard labor." During the year, the country was a destination for African and Asian women contracted as household workers, and Eastern European and Russian women contracted as dancers in adult clubs. These women may have come voluntarily; however, there was evidence that many found themselves in coercive work situations from which they had little practical legal recourse. If forced prostitution or forced rendering of sexual services occurred as a result of the abduction, the Penal Code stipulates that the abductor be sentenced to at least 1 year in prison.

Many women became illegal workers because their employers did not renew their work and residency permits. Unscrupulous employers sometime falsely accused the employee of theft in order to relinquish responsibility for the employee as well as the taxes and airline ticket home (see section 6.e). Restrictions of movement and withholding of passports were common practices. A very small number of exploited foreign workers have won cases against their employers. The judiciary did not usually acknowledge the violation of maids' rights, but in a few cases, courts decided in favor of foreign workers against whom charges had been brought. In October, the criminal court of the Metn district acquitted two Filipino maids from charges brought against them by their employers for theft. In another case, a Sri Lankan maid was repatriated after her employer dropped charges brought against her for leaving her house.

There is no law specifically prohibiting trafficking and during the year the Government did not prosecute such cases. However, during the year the Government took multiple new measures to counter trafficking, including signing on December 9 the U.N. Convention against Transnational Organized Crime Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children. Other anti-trafficking measures included the closure of approximately 15 illegal employment agencies for violating trafficking related regulations by the Ministry of Labor, and participation in awareness programs. The Government did not provide foreign workers with relief from deportation, shelter, or access to legal, medical or psychological services. However, social workers from the Caritas Migrant Center have full-time access to the government retention Center for Foreign Persons. A number of NGOs provided pro bono legal assistance and counseling to victims of trafficking. The Ministry of Labor has established a complaint procedure through which it says it will take an active role in complaint cases. To date, few victims of trafficking have used this procedure. During the year, the Ministry of Labor also began implementing procedures for lodging complaints against employers or employment agencies.

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